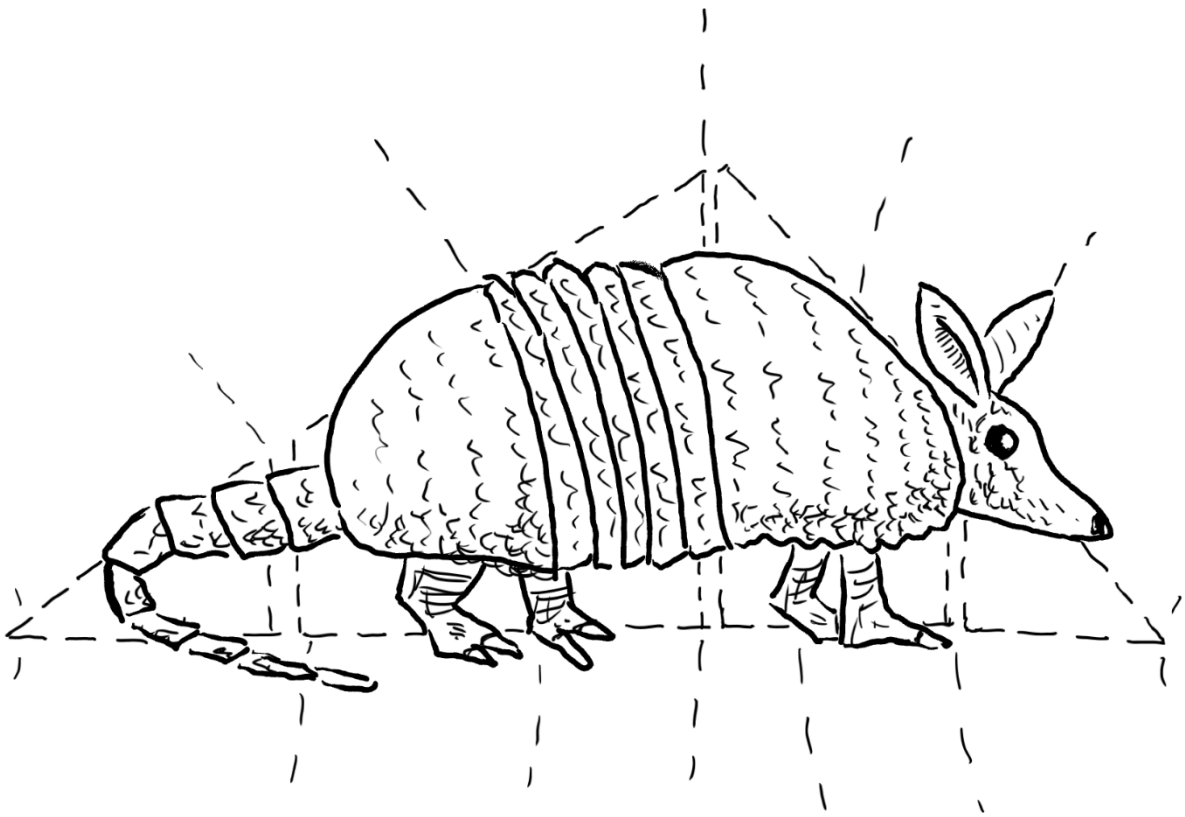
# Negotiations Manual



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*All illustrations by Adam Kaminsky*

*AI was not used in any part of the creation of this document*

*Written and compiled for the class "Negotiations and Mediation Skills" at the University of Michigan School for Environment and Sustainability*

MSEAS

# Introduction

*"The most profound lesson from this course was the realization that negotiations are a key tool for maintaining a diverse society. By definition, diversity leads to a wide range of opinions, thoughts, and interests, and therefore is harder to maintain than a homogenous society in which everyone agrees. One of my core values is to support and celebrate diversity, and yet I have not, until now, considered the social mechanisms that allow diversity to flourish. I am thrilled to discover negotiations as one of these core tools, and excited to continue learning the art of maintaining diversity through negotiation." - Adam*

**Negotiation Defined** | Negotiation is the process of jointly making decisions among interdependent parties in the face of divergent human interests.

**Important Terms**

1. *Parties* – Individuals or organizations with interests at stake
2. *Positions* – Stances taken by parties
3. *Interests* – Underlying reasons behind the stances. Concerns, needs, or "why"
4. *Preferences* – Prioritized interests
5. *Personalities* – People act in ways that are only partially "interest-rational"
6. *Power* -Ability to influence someone to act in ways they otherwise may not
7. *Politics* – Events or situations happening outside of the immediate environment
8. *Place* – Setting of negotiation can matter. Timing, deadlines, third parties, etc.

**Assumptions of Negotiation**

People are at the table because they are amendable to negotiation.

People enter negotiations because they stand to improve their situation through joint action, rather than what they might achieve unilaterally.

**Understanding the BATNA** | Best Alternative to Negotiated Agreement

A BATNA describes the outcome of negotiation if no agreement is reached. Understanding your BATNA is fundamental to effective negotiations.

**The Home Depot Story** | BATNAs can be leveraged against your counterpart.

*One of Steve's former students wrote describing how they were able to alter the perception of their opponent's BATNA to reach a better deal. The former student worked for a firm advocating for the cessation of logging in old growth forests, and was hoping to convince Home Depot to stop selling old growth timber at their stores. At first, Home Depot had no reason to speak with the former student because their sales were good, they had a good supply of lumber, and there was really no reason to change anything. The BATNA for them was business as usual. However, the former student began an advertising campaign advocating for the protection of old growth forests, on which they planned to list all of the companies that signed on to a protection pledge, and all of those companies that refused. Armed with this campaign, the former student returned to Home Depot and politely asked which list they would like to be on for the advertisements. This dramatically shifted Home Depot's BATNA from "business as usual" to significant negative press. In the end, the BATNA was worse than a negotiated agreement, so Home Depot signed on to the pledge to not sell old growth timber.*

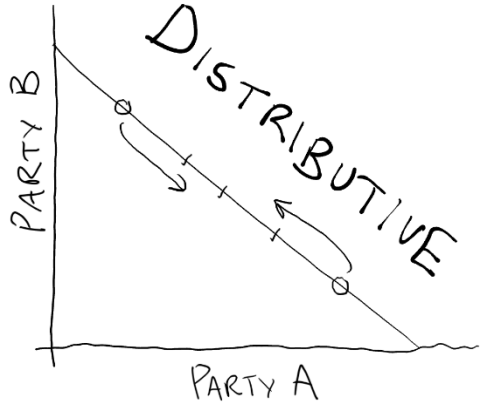


**Distributive vs. Integrative Bargaining**

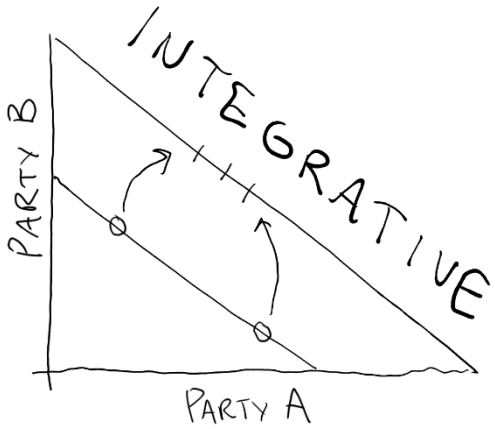
Distributive Bargaining | Assumes a zero-sum, or fixed pie outcome. The main tasks in a distributive situation are:

1. Calibrate the Zone of Possible Agreement (ZOPA)
2. Anchor the decision

*These tasks are accomplished through research, asking questions, and exploring interests.

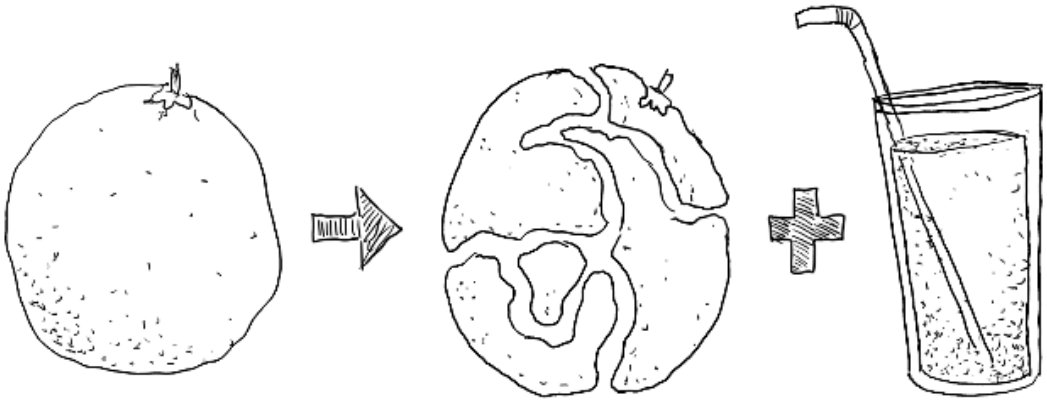



Integrative Bargaining | Relies on collaboration to discover mutually beneficial agreements that add value through creative solutions.



**The Orange Story** | Don't forget to explore interests and think outside the peel!

*During the first week of class we ran a two-party simulation in which each party needed a particular fruit – the Ugli Orange –essentially to save the world. One party needed Ugli Orange to formulate an antidote to a nerve toxin that was about to be released, and another needed the fruit to develop a vaccine against a deadly outbreak that was quickly spreading. The catch was that the Ugli Orange is extremely specialized, and so only 3000 fruits exist in the world. I was representing the nerve-gas party and, of course, I needed 3000 to neutralize the threat. My counterpart also needed 3000, and so we began to debate how many lives were worth saving in each scenario as we attempted to distribute the fruits. Unfortunately, we ran out of time and did not realize that I only needed the juice, while my counterpart only needed the peel! We had been stuck in a distributive mindset, and did not even realize the integrative solution. I will never forget the orange in future negotiating scenarios, perhaps they only need the peel.*



**Getting to Integrative Bargaining**

1. Focus on the Interests
    - Open an explicit discussion of interests
    - Don't get locked into positional thinking
    - Explore the "why" of positions to uncover their underlying interests
        - "We need to build a hotel with 2000 rooms" (Position) vs. "We need a financially viable hotel" (Interest)

2. Communicate Effectively and Accurately
    - Listen actively and without bias
    - Ask questions, ask why
    - Be ok with silence
    - Pay attention to people's needs
        - Respect, acknowledgement, validation, etc.

3. Create Options
    - Be inventive and creative
    - Propose "yesable" solutions
    - Separate inventing from deciding
    - Be firm on ends, flexible on means

4. Clarify and Understand BATNAs On All Sides
    - Solicit expertise and opinions from outside the negotiation
    - Consider influencing perceptions of BATNA

5. Use Objective Criteria
    - Develop a strategy for how a decision will be made

6. Be Mindful of Relationships
    - Negotiations are rarely a "one-shot-deal", future relationships matter

7. Be Mindful of Commitments and Obligations
    - Only make deals with realistic follow-through

8. Prepare, Prepare, Prepare

**Preparation Guide**

Preparation is the number one indicator of success in negotiation. Review the following preparation checklist provided in class, and remember to learn the lingo, review precedent, and clarify BATNAs on all sides.

1. The People and the Conflict
    - What kind of a conflict situation is this going to be (i.e., does it appear possible for all parties to achieve their goals)?
    - What has been the nature of my relationship with my counterpart in the past, and how will that affect the current negotiations? What might I do in the negotiation to fix and avoid past communication problems?
    - Is there anything I need to learn about my counterpart -- their reputation and style; their major characteristics -- to make this negotiation successful?

2. Alternatives (BATNA)
    - What are my alternatives? Of these, which one is my best (my BATNA)- what I will do if we cannot come to agreement?
    - What do I think my counterpart's alternatives are? Of these, which do I think is best (their BA TNA)- what they will do if we cannot come to agreement?
    - How might I be able to improve my best alternative (make it more attractive to me or more possible for me to resort to)?
    - How might I be able to weaken my counterpart's best alternative (make it less attractive to them and more difficult to resort to)?

3. Interests and Goals
    - What are my interests - my needs and concerns regarding the issues to be discussed? Why are they important?
    - What are my tangible interests and goals in the negotiation?
    - What are my intangible interests and goals in the negotiation?
    - Which tangible and intangible goals are most important?
    - What is the relative importance of the intangibles to the tangibles?
    - What are my counterpart's interests - their needs and concerns? Why are they important to them?
    - What do I want to learn from my counterpart? What questions should I ask?

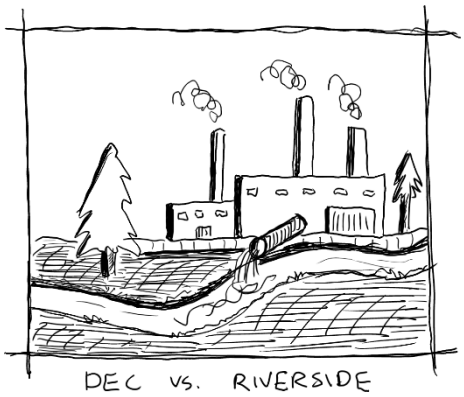
4. Issues
    - What will be the major issues to be addressed in this negotiation?
    - Do I have the information I need on each issue? If not, where can I get it?
    - Which issues have higher priority for me? Which have lower priority?
    - Which issues are linked together and therefore easy to package?

5. Options for Settlement
    - Given my goals, assumptions and information about my counterpart, what would be the best deal I could expect from this negotiation?
    - What would be a "fair and reasonable" deal?
    - What would be a minimally acceptable deal?
    - What might be some objective criteria or standards that could be applied in judging options for addressing the issues on the table?

6. Competitive Advantages and Disadvantages
    - What are the strongest points in my arguments? What are my advantages?
    - What are the strongest points in my counterpart's arguments? Their advantages?
    - What is the weakest point in my position?
    - What is the weakest point in their position?
    - Given these advantages/disadvantages, should I modify my goals or objectives?

7. Negotiation Process
    - What might be a useful agenda for the negotiation? What are the most important items for me in setting the agenda with my counterpart (e.g. time limits, how and which items are discussed, ground rules)?
    - What kind of a strategy do I want to use in this negotiation? What do I need the other negotiator to do to make this strategy work? What is my fallback option? What kind of tone or climate do I want to set?
    - What messages do I want to convey? When and how should I send the messages to ensure that my points are understood as intended

**Case Study: DEC v Riverside** | Strive for a "durable" agreement




*This simulation revolved around a dispute between the Washington Department of Environmental Conservation (DEC) and the Riverside lumber company. I played the part of DEC, which sought to regulate discharge from the Riverside plant into the Blue River. As this was my first simulation of the class, I started preparing early, which afforded me ample time to ruminate over the complicated facts, numbers, and social dynamics presented in the case. Two specific elements of my preparations ended up being particularly useful: a skeleton of an agenda and an organized list of our priorities. The agenda chronicled when to bring up certain topics, and included sample wording of how to ask direct questions about our counterpart's interests. Keeping the agenda vague was helpful as it allowed us to be flexible in the moment, but not lose track of our progress. The organized list of priorities was useful as a constant reference to check whether or not proposed ideas were beneficial to my party. Within the negotiation, we set an intentionally friendly tone, consistently made the first offer, and routinely framed offers in terms of objective fairness. These strategies led us to perform quite well (according to the scorable game we got the highest marks in the class, with our counterparts scoring the lowest). However, upon reflection, I was not positive that such a disparity in outcome would create a lasting, durable agreement. If Riverside went back to their stakeholders and explained that they barely made a deal over BATNA, they may be disappointed, leaving the negotiators feeling taken by our tactics In fact, despite our perceived congeniality, this one-sided-ness might backfire, resulting in an agreement without future "durability". This point resonated with me, as I truly was attempting to create the best mutual gain between all parties. We did meet our own interests well, but we should have thought about the deal on a longer timeline than this one particular moment.*

# Integrative Bargaining

*Integrative bargaining is the process by which joint gains are discovered.*

### Cooperation vs. Competition

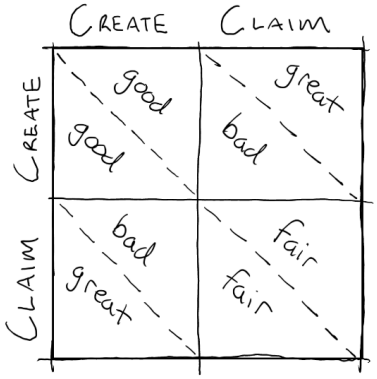
Joint gains are possible by creating value through cooperation, but competition will undermine this process, leading to a claiming of value.

To promote cooperation, uncover differences in preference and invent solutions for which those preferences are satisfied.

> *Steve gave the example of a situation in which two parties are splitting up 20 apples and 20 oranges. To be fair, they may decide to split the total and take 10 of each, but this does not take preference into account. In fact, one party prefers oranges, and the other prefers apples, so splitting 15-5 creates more value on both sides.*

### Tit for Tat

> *In the 1970s, political scientist Robert Axlerod devised a computer game to experiment with the best strategy to employ with the prisoners dilemma. In the prisoners dilemma, two "rational actors" are told that they have two options for behavior: cooperate, or defect. In terms of negotiations, these behaviors could be translated to create or claim value. The outcome structure for these behaviors is as follows:*




> *The dilemma of this thought experiment is that to protect yourself from bad outcomes, both parties tend to claim, leading to a tendency for fair outcomes at best. However, in Robert Axlerods experiment the game was repeated continuously, and contestants were instructed to write a program to ensure the*

*best outcome for their party. Among the many attempts, the program with the highest success was called Tit for Tat, written by Anatol Rapport. The program was extremely simple, and dictated that it should first create, and then repeat whatever its opponent did on the previous move. The result is that negative behaviors are punished, and positive ones are reinforced, ultimately leading to the greatest positive gain.*

The lesson from Tit for Tat is that humans in our current world are fearful of being taken advantage of, and will tend to claim value as a defensive tactic. However, to improve the likelihood of success, negotiators should act NICE – PROVOCABLE – FORGIVING – NOT TOO CLEVER.

NICE | Be cordial and *show* respect

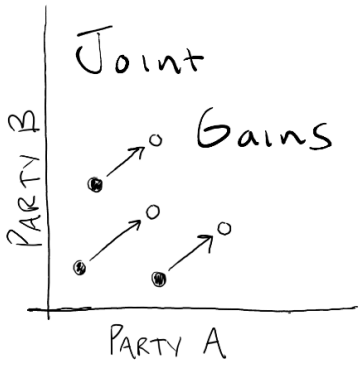
PROVOCABLE | If counterparts assert power, assert your own back at them

FORGIVING | Allow counterparts to improve their behaviors without judgement

NOT TOO CLEVER | Keep solutions simple and easy to understand

Unlike in the computer simulation, negotiators are also able to COMMUNICATE, and should stress the importance of collaboration in pursuit of joint gains.

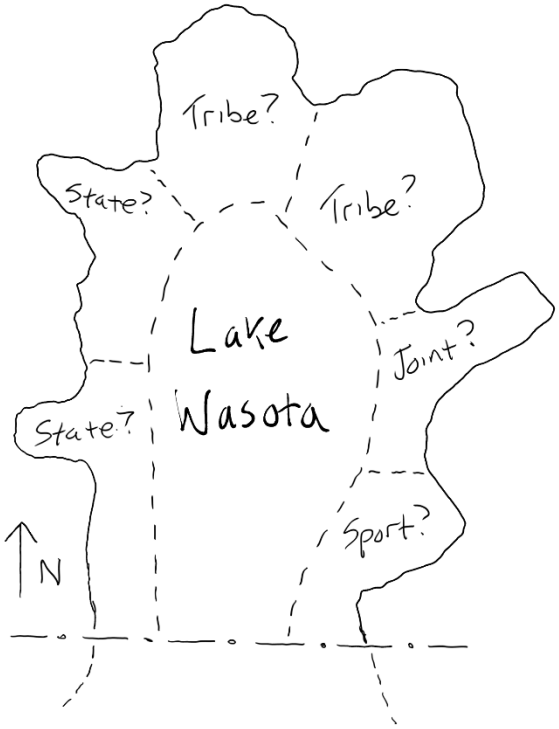
**Getting to Joint Gains**




1. Decide How to Decide
    - Focus on objective criteria and develop a decision framework ahead of time
2. Look for superordinate goals
    - Shared values outside of the immediate conflict can bring parties together and incentivize cooperation
3. Separate Inventing from Deciding
4. Remember Tit for Tat – Nice, Provocable, Forgiving, Not Too Clever
5. Develop negotiating power through manipulating the BANTA
6. Utilize a third-party arbitrator to encourage cooperation
7. Design an effective process
    - Create the conditions to foster effective, interest-based negotiation

**Case Study: Lake Wasota** | Packaging

*The Lake Wasota simulation centered around fishing rights, and involved six parties representing state, federal, tribal, commercial, and private interests. At the outset of this simulation our group spent significant time getting to know one another and exploring our interests and values. Prior to even starting the simulation, I made a deliberate attempt to meet everyone "before we got into character", as I thought that this would help create separation between the people and the problems. The outcome of this strategy was that we did work very collaboratively, but it came at a significant cost of time. Furthermore, while the collaborative effort certainly helped advance my own party's goals, it created a dynamic of "group-think" that pressured parties with less power to agree in ways that did not support their interests.*




*Upon reflection, our group's major folly was that no one brought a complete package to the table, and rather we attempted to create a package together. The complexity of the issues meant that they were highly interconnected, making packages the best way to communicate our preferences. Overall, while collaborating and personal relationship building are important, we could have negotiated a better deal in the end had we each taken more time to develop and present distinct packages over which to deliberate.*

# Psychological Factors

**Power**

Sources of power in negotiations include:

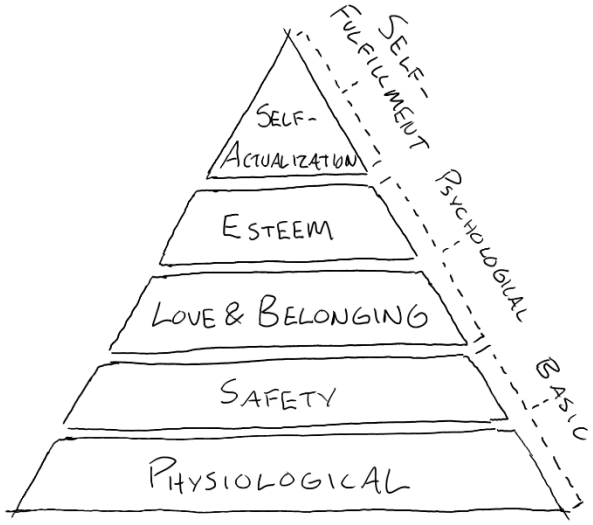
1. A good BATNA
2. Skill or Expertise
3. Information
4. Creative or Elegant Solutions
5. Legitimacy
6. Good Relationships
7. Linkages Between Issues

There is almost always unallocated power in the room, meaning negotiators can almost always gain power

Power is ultimately a product of perception, but false perceptions of power lead to vulnerability

**Maslow's Hierarchy of Needs**

Maslow's Hierarchy of Needs is a conception of the needs or goals that motivate human behavior. It was proposed in 1943 by the psychologist Abraham Maslow, and has since become foundational in human behavioral psychology. As a negotiator it is helpful to remember this hierarchy as peoples' behaviors may be reflective of their underlying needs.



In a negotiation, a helpful tool is to preemptively set ground rules designed to protect people's needs.  Among the many behaviors to promote, RESPECT is perhaps the most important.

> NOTE: It is possible that people simply do not respect each other, however, they can always be asked to SHOW respect during the negotiation.

**Negotiator Cognition**

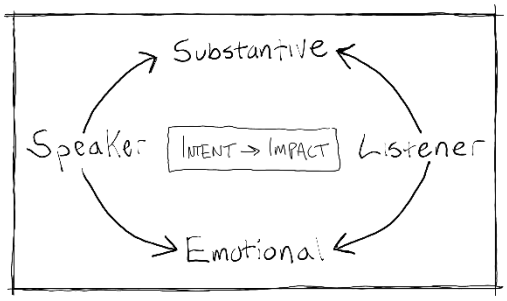
1. Assumption of a Fixed Pie | Our dominant society is based around an underlying assumption that people are in direct competition and engaging with zero-sum or win-lose scenarios
    - Remind yourself that few situations are actually zero-sum
    - Prove to counterparts that integrative solutions are possible
    - Invent creative solutions that break assumptions
    - Appeal to superordinate goals
2. Framing
    - Create anchors that create a positive frame for your counterpart
    - Negotiate in terms of what they can gain
    - Frame your own position positively to gain power in the negotiation
3. Selective Perception | Confirmation bias is powerful and can sway opinions dramatically
    - Be careful of assumptions and test them regularly
    - Connect with individuals on the other side: separate the people from the problem
4. Self-Fulfilling Prophesies | These can create feedback loops that reinforce assumptions
    - Communicate and freely share your hypotheses
    - "Treat others as you want them to be" - Steve

**Perspective Taking**

Actively work to understand the perspective of your counterparts, including their perspectives as negotiators, as representatives of a party, and as individuals.

**Difficult Conversations**

Conversations that mix personal and professional issues are labeled "difficult", and are dealt with by thinking about how the speaker and the listener are interacting with both emotional and substantive issues.




The following offers tips for when you are in a particular position and dealing with a particular type of content:

Speaker-Substantive | Just because you say something doesn't mean it is understood. Make it *easy* to listen with the following

- Use visuals
- Give examples, stories, analogies
- Restate and remind
- Ask listener to repeat what they heard

Listener-Substantive | Listen!

- Clarify what you think you heard
- Use silence to encourage speaker to say more
- Ask questions, summarize, and paraphrase
- Take notes

Speaker-Emotional | Speak for yourself

- Don't ascribe motives to the other party
- "I feel ignored" is more effective than "you're ignoring me"

Listener-Emotional | Acknowledge emotions as they come

- Validate people's feelings
- Listen actively and visibly
- Feed back emotions with phrases such as "I can appreciate how this is frustrating"

**Dealing with Differences**

By definition negotiations involve differences in opinion that can make agreements feel impossible. The following are tools to use to resolve specific types of differences

1. Difference in Information
    - Research
    - Decide acceptable uncertainty
    - Use independent sources to reduce bias
    - For theories, structure contingencies into agreements
    - To address information bias, conduct joint fact finding
    - *"What type of evidence will it take to convince you to change your opinion?"*

2. Difference in Risk Tolerance
    - Use contingencies or phasing
    - Determine who assumes costs using insurance agreements

3. Differing Levels of Trust
    - Provide options for involvement

4. Difference in Assessing Success
    - Use objective targets

☆ *Agree to Disagree* ☆

☆ *Consensus is a Continuum* ☆
*("I Can Live With That" <-----> Full Endorsement)*

**Dealing with Hard Bargainers**

The most important element of dealing with hard bargainers is the recognition of claiming behavior. Once recognized, this behavior can be countered using the numerous tactics listed below. Also, remember that the literature does not suggest that hard bargainers get the best outcomes in negotiation, so they too have something to gain by transitioning away from this behavior.

To counteract hard bargaining, it is important to understand the underlying motivation for the behavior. The following are common motivations with associated tactics for addressing the behavior.

1. Hard bargainers may have only ever been exposed to that style of negotiation. Our world is very competitive, capitalistic, and carries an assumption of a fixed pie. They may just be falling into the only behavior they know.
    - Prove that cooperation is desirable and demonstrate other ways to act
        - Ask questions
        - Focus on the interests
        - Invent "yesable" propositions
        - Prove trustworthiness
2. Hard bargainers may be uncommunicative, incompetent, or unprepared, leading them to double down and become entrenched in positions.
    - Do the work for them
        - Clarify their interests
        - Take small steps using simple yes / no questions
        - Be specific but not condescending
        - Suggest opportunities to learn (walk the land)
3. Hard bargainers often view the situation as zero-sum.
    - Demonstrate integrative solutions that expand the pie
        - Be creative
4. Hard bargainers may be hostile, angry, frustrated, and competitive.
    - Deal with the emotional issues at hand
        - Demonstrate understanding
        - Remind of superordinate goals
        - Apologize as needed
        - Pay attention to and temper your own state of mind

☆ *Most people want to appear reasonable, to cooperate, and to be liked!* ☆

**Case Study: Dioxin** | Contingencies and Details

*Based on a real-life situation that took place in New York City in the early 2000s, the "Dioxin" simulation centered on waste management in one the largest cities in the United States. The situation was that trash was building up, the landfills were aging and beginning to leak, and the city needed a new method for disposing of the mounting waste. The main proposal was to install Waste to Energy Facilities (WTEFs) that would burn the waste and create energy for the city. This was relatively new technology, but implemented at various scales throughout the world. One of the dominant objections to WTEFs was the belief that they polluted the air with dioxins, a class of chemical known to be carcinogenic and increase cancer rates. However, the method and quantity of dioxin creation was up for debate, and therefore pollution control measures were also unclear. The simulation included six parties representing the WTEF industry, the city, an environmental group, a public health group, an independent combustion expert, and a chemist representing the citizens of the city. All parties agreed that they did not want to pollute the environment with dioxins, but differed in their opinions on how to best mitigate this risk. Ultimately, the parties disagreed about the future outcome of building WTEFs. The environmental and health interests tended to think that building a plant would result in pollution and harm to human health, while the industry and city interests tended to think that engineered solutions would prevent future pollution and harm. In our simulation we did not identify this fundamental difference, and therefore crafted a deal that balanced acceptable risk for all parties. However, after debriefing as a class, we realized that a contingent agreement would have been the best way to address the uncertain future. Such an agreement could have looked like: "if Dioxin emissions are high, then shut down the plant. If low, then build more plants". This would likely have met the interests of all parties, and led to greater satisfaction overall. The other main takeaway from this simulation was the importance of details in the written agreement. Our group focused much more on the discussion portion of the negotiation, and spent insufficient time on the written document, leading to lots of vague language that would be easy to misinterpret or exploit down the line. The written document is the only binding portion of a negotiation, and therefore it is critical to craft a report that captures the details of the agreement.*

# Facilitation and Mediation

*Facilitators are the masters of process, wielding it to guide the conversation and ensure that all parties are able to participate to their fullest extent. Facilitators are non-partisan but not neutral, meaning they do not take positional sides, but will intervene to balance power and safeguard process.*

### Note Taking

Facilitators should capture the following throughout the negotiation

1. Agenda
2. Ground Rules
3. List of Parties
4. Issues
5. Interests
6. Ideas and Options
7. Packages
8. Agreements and Details

*I found that writing organized, legible notes on the board was impossible while also actively listening to the conversation. Instead, I can take my own personal notes in a notebook while listening, and then take time to intentionally write those notes on the board. I also discovered that it is immensely helpful to make drafts of matrices or other visual tools ahead of time for cleaner and more organized results.*

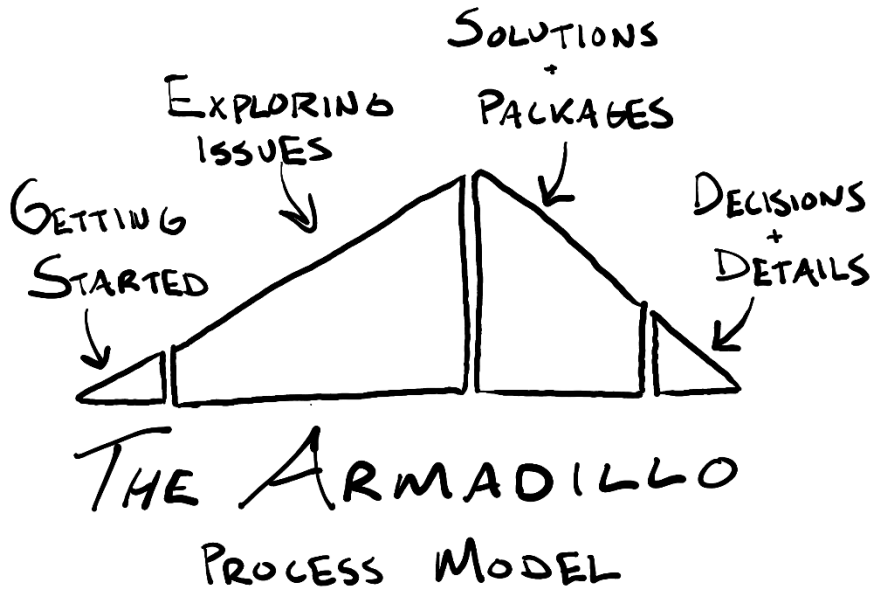
### Negotiation Flow

Pre-Meeting | Interview parties, understand incentives, relationships, and challenges. Design the process

Inter-Meeting | Check-in on process and adapt

Post-Meeting | Convey results, explain and defend process, ensure agreements are implementable

**The Armadillo Process Model**




1. Getting Started
    - Set the stage by defining the focus and tone
    - Define norms of behavior
    - Explain role of facilitator and instill trust
    - Define the process, making sure to include enough detail to support the focus of the negotiation
    - Decide on what agreement looks like (consensus, majority, etc.)
2. Transition | Mark it, receive consent to continue, and describe the next step
3. Exploring Issues
    - Define the topics of discussion
    - Help parties speak clearly and listen effectively
    - Clarify the problem and consider crafting a joint problem statement such as "how can we…while also…?"
    - For disputation of the facts, design fact finding process
    - Use visuals to distill, cluster, and organize issues
4. Transition | Mark it, remind parties where they are, and name the transition from talking about issues to discussing solutions
5. Solutions and Packages
    - Begin with brainstorming solutions, reminding parties to refrain from judgment at this stage

    - Encourage creativity and separate inventing from deciding
    - CLEARLY define the transition from brainstorming to evaluating
    - List the pros and cons of options
    - Solicit packages through a variety of techniques – open process, caucusing, or a single negotiating text
    - Evaluate packages – use matrices or dot poles to visually represent preferences
    - Consider tools for moving beyond the following disagreements:
        - Likely future states → Contingencies
        - Assessments of risk → Insurance or risk sharing
        - Time Preferences → Inter-temporal agreements
6. Transition | Mark it, mention headway, and use momentum to generate agreement
7. Decisions and Details
    - Remind parties of their BATNAs
    - Remind parties of the consensus continuum
    - Record details of the agreement

**Dealing with Challenging Behaviors**

When confronting challenging behaviors that threaten the negotiation process, experiment with the following tools.

1. Turn statements into questions
2. Remind parties of their BATNAs
3. "Clean the rusty pipes" - allow emotional parties to vent their concerns
4. For those with adamant and repeated ideas, validate them by writing the idea down visibly so the group can move on
5. "Boomerang" a complaint into a question
6. Put ideas in the "parking lot", a physical location on the board for ideas outside of the scope of the negotiation
7. For indecisive parties, ask pointed and direct questions
8. For distracted individuals, set ground rules around technology and respect
9. Take breaks
10. Provide time for people to think

**The Nominal Group Technique**

The nominal group techniques is designed to develop a single draft from a group of people with diverse backgrounds and opinions.

The process is as follows: BRAINSTORM → CLUSTER → PRIORITIZE → EVALUATE

Brainstorm

> Provide paper and markers and task each individual with writing one solution to the stated problem on their paper. They can create multiple papers. Make sure that each individual has sufficient time to think on their own. When ready, read aloud each paper and post them on a board visible to the group.

Cluster

> As each paper is read and posted, begin to cluster into similar themes. Once the brainstorming process is complete, solicit feedback from the group on clustering, and generate general topics that cover the presented ideas.

Prioritize

> Provide dot stickers and instruct each individual to vote for the ideas they feel to be most important. This can become more specific as well if you instruct participants to vote for the most efficient, most economical, etc.

Evaluate

> Consider the votes and coalesce the group input into a single document that highlights the results of the process.

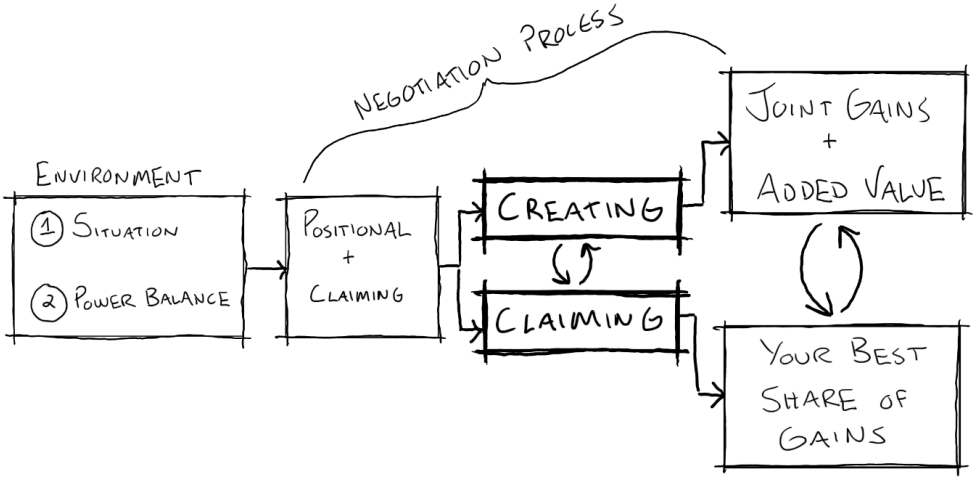
> *The physical convening of individuals and the tactile process both play a significant role in the success of the Nominal Group Technique. Physical closeness and the public physical actions of posting and voting help build empathy for one another, while the tactile nature of the technique fosters an atmosphere of fun. Together, this creates a collaborative atmosphere conducive to group decision making.*

**Case Study: Hawaii Resort Development** | Cultivate agency among parties

*Our final big simulation centered around a development dispute in Hawaii, for which I represented a multi-national resort developer. Unlike our other simulations thus far, this negotiation featured a facilitator, which changed the dynamic considerably. At the outset, our facilitator spent a substantial amount of time writing a matrix on the board, during which all of the parties began to get antsy and frustrated that we did not have any consultative power in deciding which issues to discuss. I think that a more effective start to the negotiation may have been the following: 1) Facilitator introduces themselves and asks for very simple introductions from the group. 2) After introductions, facilitator works with group to write ground rules for the meeting, and gets consent from all parties to adhere to the rules. 3) Each party gets two minutes to describe their perspective on why they are here today, and what issues they are hoping to address. 4) Facilitator thanks the group, and assigns everyone to consider their own issues and those of their colleagues to create questions in the format of "how can we…while also…". The facilitator could then take this moment while people are writing to draw the matrix on the board, and receive input to consolidate issues. I would love to experiment with this strategy as an opening to frame the tone and collaborative mindset of the negotiation. One thing that I felt changed dramatically with having a facilitator was that in the past the group itself needed to facilitate its own meeting, which created a sense of collaborative process making. In this negotiation I didn't need to worry about facilitating a good discussion, and therefore I slipped into a more self-centered and combative tone. I think having agency over the process, for my own personality, helps me work collaboratively. The implication is that facilitators should consider engaging the parties in the process so they feel a sense of agency. After we tentatively agreed to a package, we set about writing the final document, and it was during this time that I felt like our group was the most cohesive and understanding of one another. This experience again shows the power of collective problem solving to bring a group together. As a facilitator, you are at risk of taking that power away from the group, forcing them to check out and leave the problem solving to you. In the end, our facilitator did a wonderful job of guiding us through writing the final document ourselves, which re-empowered us to solve the problem together.*

# Conclusions

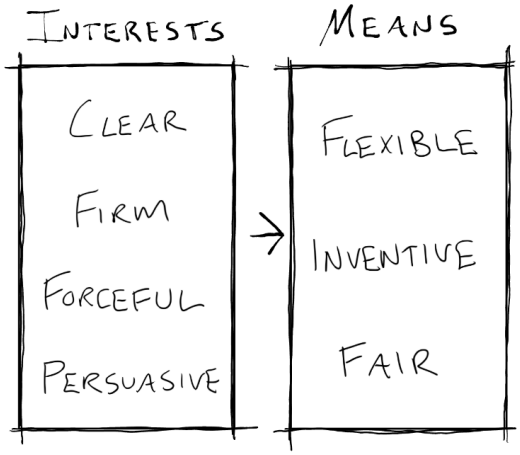
**Negotiation Process Diagram** | Balance Creating and Claiming




Negotiations happen within an environment in which there is a particular situation and power balance setting the tone for communication. When negotiations begin, it is natural for parties to be positional and attempt to claim value, but a skilled negotiator will transition this behavior into integrative bargaining in which creating and claiming work in harmony. In the end, negotiators need to claim the best share of their potential gains, but do so in a way that creates value and joint gains on all sides.

### Being an Effective Negotiator

As a negotiator it is important to assertively defend your interests while openly collaborating on the means by which those interests are met.

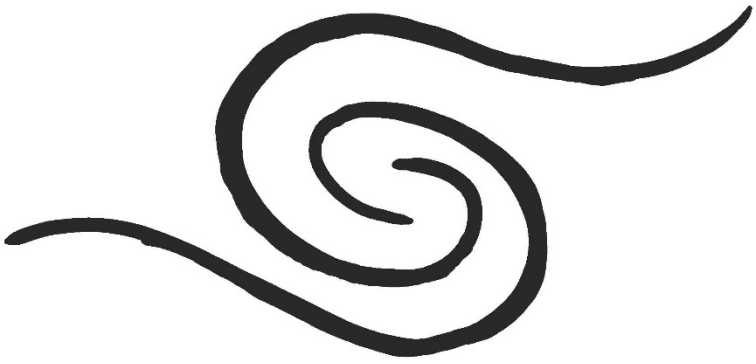


**The Wisdom of Steve Yaffe** | From the Journal of Steve

1. Success in negotiation is reliant on the three Ps:
    a. PREPARATION, PROCESS, PERSPECTIVE TAKING.
2. It is the responsibility of the negotiator to articulate and advocate for their own interests. Doing so is an obligation, and can ultimately benefit all parties.
3. Ask questions, listen, and think about the motives of negotiation counterparts.
4. Confidence and effectiveness exist in a positive feedback loop.
5. Facilitation is fundamentally an agent of social change.

**Final Thoughts**

*Our world is increasingly dominated by extreme opinions, conflict, and competition. Negotiation and facilitation offer an antidote to this caustic environment by presenting a powerful tool designed to push beyond stagnation. To wield this tool is to challenge oneself to social discomfort, to wear the shoes of others, to stand firm against the gale, and to see beyond the masks of our kin. In doing so, all of humanity stands to gain, and so we practice, reflect, and practice again, until the ground between solidifies and supports our steps together.*



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